

24STCV34108 24STCV34108

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-16

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Case Number: 24STCV34108 Hearing Date: September 16, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 16,

2026 TRIAL

DATE: Not set.

CASE: Spiva v. Maker Learning Network

CASE

NO.: 24STCV34108

SPECIAL

MOTION TO STRIKE

MOVING PARTY/PARTIES: Defendants

Robert Davis, Mario Bates, and Calvin Howard ("Defendants")

RESPONDING PARTY/PARTIES: Plaintiff Derrick Spiva

("Plaintiff")

PROOF OF SERVICE:

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The Court continued the matter to
this date.

CASE HISTORY:

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December 23, 2024: Complaint filed.

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June 5, 2025: First amended
complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff Derrick Spiva

("Plaintiff") sued Defendants Robert Davis, Mario Bates, and Calvin Howard
("Defendants") for employment claims.

Defendants filed a special motion to strike the eleventh, twelfth,
thirteenth, and fourteenth causes of action in Plaintiff's first amended
complaint. Plaintiff opposes the motion.

In its order of June 3, 2026, the
Court directed Plaintiff to file an amended complaint within 20 days of notice
of the order. The Court deferred ruling
on Defendants' special motion to strike until resolution of the pending
challenges to Plaintiff's pleading. (See
Oakland Bulk & Oversized Terminal, LLC v. City of Oakland (2020) 54
Cal.App.5th 738, 751.) Defendants gave
notice of the order on June 8, 2026 by email.
As such, Plaintiff had until June 30, 2026 to file the second amended
complaint. Plaintiff failed to do
so. Accordingly, the Court rules on the
special motion to strike. The Court does
not consider the motion as to the Plaintiff's thirteenth cause of action, to
which the Court sustained Defendants' demurrer without leave to amend. Likewise,
the Court does not consider the motion as to the fourteenth cause of action for
fraud, to which the Court sustained Defendants' demurrer with leave to
amend. As Plaintiff failed to amend, the
fourteenth cause of action is subject to dismissal. (Code Civ. Proc., § 581, subd. (f)(2).) The Court considers the motion as to
the
eleventh and twelfth causes of action.

TENTATIVE RULING:

Defendants'

special motion to strike is DENIED.

Moving

party to give notice.

DISCUSSION:

In ruling on a defendant's special motion to strike, the trial court uses a two-step process. First, the defendant must show that the act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech under the United States or California Constitutions in connection with a public issue. (Code Civ. Proc., § 425.16, subd. (b)(1).) If the defendant carries that burden, the burden shifts to the plaintiff to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(3).)

Plaintiff's eleventh cause of action is for defamation and twelfth cause of action is for false light. Plaintiff's claims for defamation and false light are based on Plaintiff's allegations that Defendants falsely stated "that Plaintiff engaged in financial mismanagement, fraud, or other unlawful conduct in his role as Executive Director of Synergy School of the Arts and Technology." (First Amended Complaint, ¶¶ 241-242.) Plaintiff alleges that Defendants made these statements "in communications submitted to the Department of Justice and other third parties" (First Amended Complaint, ¶ 241, see also ¶ 247.) Reporting a person's unlawful conduct to authorities may constitute a petition to an official body for purposes of a special motion to strike. (See *Wang v. Hartunian* (2003) 111 Cal.App.4th 744, 749.) However, "[n]either the federal nor the state constitutional right of petition or free speech encompass a right to file a false crime report." (*Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 703, emphasis original.) As such, if, as Plaintiff alleges, Defendants falsely reported Plaintiff to the authorities, Plaintiff's claims do not fall within the special motion to strike framework. Defendants advance no

evidence to show that Defendants' reports were truthful. Accordingly, Defendants fail to meet their burden to show that Plaintiff's claims fall within the special motion to strike framework.

As
such, Defendants' special motion to strike is DENIED.

Moving
party to give notice.

IT
IS SO ORDERED.

Dated: September 16, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.